

Court No. - 4

Case :- WRIT - C No. - 3251 of 2020

Petitioner :- Meera Devi And 119 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinay Kumar Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Bala Krishna Narayana,J.

Hon'ble Ravi Nath Tilhari,J.

On the request of Sri Baleshwar Chaturvedi, counsel for respondent-3 put up on 10th February, 2020.

Order Date :- 6.2.2020

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Petitioner :- Meera Devi And 119 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinay Kumar Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana,J.

Hon'ble Prakash Padia,J.

Heard learned counsel for the petitioners, learned Standing Counsel for respondent nos.1 and 2 and Sri Baleshwar Chaturvedi, learned counsel for respondent no.3.

This writ petition has been filed by the petitioners with the following prayers :-

"i) Issue a writ, order or direction in the nature of certiorari to quash the impugned demand notice dated 11.6.2019 issued by the respondent no.3 against the petitioners.

ii) Issue a writ, order or direction in the nature of mandamus directing the concerned respondent not to take coercive action against the petitioners till the decision of the petitioners representation pending before the respondent no.3.

iii) Issue a writ, order or direction in the respondent no.3 to decide the representation of the petitioners and revise the bill of the petitioners in accordance with law.

iv) Issue any other writ, order or direction as this Hon'ble Court may deem fit and proper in the circumstances of the case.

v) Award the cost."

When this matter was taken up today, Sri Baleshwar Chaturvedi, appearing for respondent no.3 informed us that the petitioners have got an alternative remedy of filing objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

The submissions made by Sri Baleshwar Chaturvedi, appearing for respondent no.3, appears to be correct.

The writ petition is disposed of with liberty to the petitioners to file separate objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In case any such objections are filed by the petitioners before respondent no.3 alongwith photocopy of this order within a period of three weeks from today, he shall consider and decide the same strictly in accordance with law, by speaking and

reasoned orders, as expeditiously as possible, preferably within a period of three weeks from the date of filing of such objection by the petitioners before him.

For a period of eight weeks from today or till the petitioners' objections are decided, whichever is earlier, no coercive action shall be taken against the petitioners in pursuance of the impugned demand notice.

Order Date :- 18.2.2020

Shalini